

The Bengal Indigo Contracts Regulation, 1830

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State of Uttar Pradesh - Act

The Bengal Indigo Contracts Regulation, 1830

UTTAR PRADESH

India

The Bengal Indigo Contracts Regulation, 1830

Act 5 of 1830

Published on 9 June 1830

Commenced on 9 June 1830

[This is the version of this document from 9 June 1830.]

[Note: The original publication document is not available and this content could not be verified.]

The Bengal Indigo Contracts Regulation, 1830

(Bengal Regulation, No. 5 of 1830)

Short title given by Act I of 1903, Section 2, Sections 1 and 5 of this Regulation were declared, by the Laws Local Extent Act, 1874 (Act XV of 1874.) Section 7, to be in force in the whole of the Province of Agra (then the North-Western Provinces) except as regards the Scheduled Districts. This have be declared by Notification under the Scheduled Districts Act, 1874 (Act XIV of 1874), repealed by the A.L.O. 1937, to be in force in the scheduled portion of the Mirzapur District and in Jaunsar Bawar, see Notifications Nos. 634 and 618 dated May 39, 1879, in Gazette, 1879, pp. 774 and 775 respectively.

[Passed by the Governor-General in Council on the 9th June, 1830]

A regulation [* * *]

[The words 'for amending the provisions of Regulation VI of 1823, and for providing more-effectively for enforcing the

execution of contracts' repealed by Act XII of 1891.]
relating to the Cultivation and Delivery of Indigo-plant.

1.

Preamble.

- [* * *]

[The words 'for amending the provisions of Regulation VI of 1823, and for providing more-effectively for enforcing the execution of contracts' repealed by Act XII of 1891.]

Whereas it is desirable in certain cases to afford persons who may be unwilling to renew their contracts for the cultivation of indigo the means of obtaining, by primary process a release from their engagements the following rules have been enacted, to be in force from the date of their promulgation throughout the territories subject to the Presidency of Fort William.

2.

[Persons inducing raiyats to break contracts liable to criminal prosecution.] - Repealed by Act VIII of 1853.

3.

[Cultivators failing to fulfil engagements liable to imprisonment.] - Repealed by Act XVI of 1868.

4.

[Punishment of persons damaging indigo-plants.] - Repealed by Act III of 1857.

5.

Procedure by persons wishing to be released from their engagements.

- First. - Any person who, having received advances under a written agreement for the cultivation of indigo shall be desirous, on the expiration of the period of his contract, to settle his account, shall be at liberty, in the event of the proprietor of the factory, or the person acting in his behalf, refusing to settle the same, to present a petition to the Zila Court;

and the Judge, after a summary inquiry, in the presence of the parties or their authorized agents, into the merits of the case, shall, on proof of the expiration of the contract, and of mere being not balance due from the petitioner, or if the petitioner shall deposit in Court the amount of any balance that may be adjudged to be due from him, grant me said petitioner a release from his engagement, and shall pay over the amount of any balance that may be deposited by him to the proprietor, or to the person acting in his behalf.

Second. - Procedure if proprietor objects to receive balance. - If the proprietor or person aforesaid shall refuse to receive me balance awarded to him by the summary process above provided, the Judge shall return the amount to the petitioner, leaving the defendant to seek his remedy by a regular suit.

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